



**MINUTES
MEETING OF THE SUNRISE CITY COMMISSION**

Tuesday, September 28, 2010
6:30 p.m.

1. Call to Order

Mayor Ryan called the meeting to order at 7:20 p.m.

2. Roll Call

BY: City Clerk Felicia Bravo

Those found to be present were:

Mayor Michael Ryan
Deputy Mayor Sheila Alu
Assistant Deputy Mayor Scuotto
Commissioner Donald Rosen
Commissioner Roger Wishner

City Manager Bruce Moeller
City Attorney Stuart Michelson
Assistant City Attorney Kimberly Kisslan
Community Development Director Mark Lubelski
Administrative Aide Lourdes Lawrence
City Clerk Felicia Bravo

3. Invocation and Pledge of Allegiance

4. Special Items

A) Proclamation

Proclamation declaring October 9th, 2010 as Minnie Pearl Day. Mayor Michael J. Ryan.

A message from Representative Debbie Wasserman-Schultz congratulated Mrs. Pearl. Each of the Commissioners thanked her for her dedication to the City and congratulated her on her 100th birthday.

Lillian White, the librarian for the Dan Pearl Library, presented a letter of acknowledgement to Mrs. Pearl from the director of the Broward County Library System.

B) Proclamation

Proclamation proclaiming October 2010 as Spinal Cord Awareness Month. Lourdes Lawrence, Administrative Aide.

C) Presentation

Presentation of "Water Wiser" awards for the 2010 City's Summer Camp Program. Caryl Ungerer, Leisure Services Director.

D) Presentation

Presentation of "Playful City USA" award to the City of Sunrise. Caryl Ungerer, Leisure Services.

MOTION Motion to hear Item 16D at 8:30 p.m. made by Deputy Mayor Alu was seconded by Commissioner Rosen. All were in favor.¹

Commissioner Rosen thanked Leisure Services Director Caryl Ungerer for her efforts with Playful City USA.

5. Open Discussion

Lillian Kirschenberg approached the Commission regarding an email she received regarding all of the city attorneys who served without going out to bid. There were many changes to the City, but not to the process. She believed that there was no other city attorney that was paid the amount of money that the current city attorney was

¹ Item 16D begins on Page 20.

being paid. It was a matter of trust. She asked for solid, viable reasons as to why the decision to hire a city attorney should not be made competitively.

Commissioner Alu explained that in her email there was a mistake. The City's first city attorney, Mr. Parkhurst, was paid \$99,000/year and received \$400,000 in bond money.

Imogene Ferguson came forward to speak and stated that a position of this nature should have multiple applicants considered. In the current economy, it was helpful to look at other applicants.

Eleanor Rappaport addressed the Commission regarding the matter of the City Attorney. She agreed with the previous speaker.

Bernard Shaw asked why the lights on Sunset Strip were not working.

Mark Lubelski, Director of Community Development, explained that the lines overhead conflicted with the lights. It was his understanding the lights would be powered next week.

Mr. Shaw asked about riding across pavers on Sunset Strip with in a handicap scooter or device.

Mr. Lubelski stated that the pavement met the ADA standards.

Larry Sofield came forward to speak about the Sunrise Leadership Academy. He previously accepted an award from the Leadership Academy and asked for it to be displayed in City Hall. He asked for the City Attorney position to be bid. This could be a method of saving money for the City.

Liron Offir, President of the Sunrise Chamber of Commerce, spoke in support the Small Business Advisory Board.

6. Commission/Mayor Reports

Assistant Deputy Mayor Scuotto advised that SAC field was used for home games. The scoreboard was unsafe and the City needed to add a press box/concession stand. The City has portable concession stands that were in disrepair. He recommended building a press box/concession stand. He asked for the upgrades to the pool area to be included in the overall pool repairs. He suggested staff come up with the location for the press box/concession stand.

Mayor Ryan agreed. He believed that there should be a workshop on the issue.

Commissioner Rosen stated a vendor could build the concession stand or may be willing to staff the concession stand. He thought the City could talk about this.

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Assistant Deputy Mayor Scuotto did not want a vendor to pay for the concession stand. He agreed with conducting a workshop. Sometimes teams were allowed to work the stands and earn a percentage of the sales.

Mayor Ryan asked the City Manager to schedule a workshop.

Deputy Mayor Alu stated that the consultant who conducted the needs assessment should attend the meeting. Regarding a separate measure, Deputy Mayor Alu asked the Commission to support a resolution. A bb-gun was deemed not to be a weapon if it was unloaded by a Florida 4th District Court of Appeals and overturned a guilty verdict. She asked for a resolution urging the legislature to list bb-guns as a weapon. She additionally asked for the lobbyist to work on this issue, too.

Mayor Ryan thanked the budget staff for their efforts and patience. He thanked his colleagues for their collegiality. The City was going to work closely with the Sunrise Chamber of Commerce. He believed that the City should market itself to businesses. He thanked the Chamber for its commitment to the Small Business Advisory Board. He complimented Mr. Lubelski for his proactive attention to issues. He thanked the Economic Development Advisory Board for forming an Environmental Sustainability Board. He said that the City was not on Google map. He sent a letter and now there was a map. He thanked Sherry, Flowers from the Rain Florist, the story broke over 4,000 search engines. This affected many local businesses. He thanked Larry Sofield for the introduction of the Leadership Academy.

MOTION A motion to hear Item 16D made by Deputy Mayor Alu was seconded by Assistant Deputy Mayor Scuotto. All were in favor.

The City Commission moved forward to Item 16D.²

7. City Manager's Report

Dr. Moeller explained that the Charter amendment mailers would be sent to all of the residents informing the public of the Charter amendment proposals. The cost would be just under \$9,000.

8. City Items

A) Presentation

Update on the 2010 Utility Bond Issuance. City Manager Bruce J. Moeller.

This item was pulled by staff.

² Item 16D begins on Page 20.

B) Appointment - (M10007) -

Approval to fill the unexpired 2-year term of former Deputy Chief Charles Vitale on the Police Retirement Plan Board. Staff recommends Sergeant Dan Ransone to fill the vacancy. Once approved the replacement board member will serve until March of 2011. (Tabled on CCM 8/10/10 Passed 4-0, Sofield Absent). (Tabled on SCCM 9/13/10 Passed 5-0).

MOTION Motion to remove item from table made by Commissioner Wishner was seconded by Deputy Mayor Alu.

MOTION Motion to approve Item 8B made by Commissioner Rosen was seconded by Deputy Mayor Alu.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

Commissioner Rosen suggested broadening the board membership to include a rank and file officer.

Deputy Mayor Alu agreed.

9. Consent Agenda

MOTION A motion to approve Items A through N made by Deputy Mayor Alu was seconded by Commissioner Rosen.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

A) Agreement (C10289) - Resolution 10-126

A Resolution of the City of Sunrise, Florida, approving various agreements between the City of Sunrise, Sungard Public Sector, Inc. of Lake Mary, Florida and Broward Sheriff's Office for the City's participation in the Regional Law Enforcement Records Management System, known as OSSI; providing authority for the purchasing director to execute such agreements; and

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providing for an effective date.

B) Amendment (C10227) - 06-78-10-A

A Resolution of the City of Sunrise, Florida, amending resolution number 06-78 to change a funding source; and providing an effective date.

C) Amendment (C10286) - Resolution 08-49-10-A

A Resolution of the City of Sunrise, Florida, approving a First Amendment to contract no. (08)C-13-H between the City of Sunrise and Revere Control Systems, Inc. of Birmingham, Alabama for supervisory control and data acquisition services; and providing an effective date.

D) Amendment (C10268) - Resolution 07-111-10-B

A Resolution of the City of Sunrise, Florida, approving a Fifth Amendment to the agreement between Broward County and the City of Sunrise, providing funds from the U.S. Department of Housing and Urban Development (HUD) through the State of Florida under the 2005 Community Development Block Grant Disaster Recovery Initiative Program (DRI); providing for the administration of eligible activities; authorizing the mayor to sign the required documents; and providing for an effective date.

E) Grant (C10262) - 10-127

A Resolution of the City of Sunrise, Florida, approving an agreement between Broward County and the City of Sunrise for State EMS County Grant Funding; authorizing the Fire Chief to execute necessary documents; authorizing the Purchasing Director to make procurements in accordance with the terms of the grant; and providing an effective date.

F) Agreement (C10264) - Resolution 10-128

A Resolution of the City of Sunrise, Florida, to award bid no. 10(23)12-06-08-10-R and a contract to Sun Up Enterprises, Inc. of Weston, Florida for Lift Station 304 and Center Court Watermains; and providing an effective date.

G) Agreement (C10267) - Resolution 06-153-10-C

A Resolution of the City of Sunrise, Florida, approving a Memorandum of Agreement with the

City of Miramar to participate in the FY 2009 Urban Areas Security Initiative (UASI) Grant Program; providing for execution of documents; and providing an effective date.

H) Equipment (C10284) - Resolution 10-129

A Resolution of the City of Sunrise, Florida, approving the purchase of computer equipment from Dell Marketing, I.P. of Atlanta, Georgia, under the terms of the Western States Contracting Alliance (WSCA) contract no. 250WSCA10ACS; and providing an effective date.

I) Equipment (C10290) - Resolution 10-130

A Resolution of the City of Sunrise, Florida, approving the purchase of furniture for the Tennis Center from Workplace Resources of Weston, Florida, under the terms of State of Florida contract no. 425-001-06-1 and pricing lower than the Metro-Dade County Contract #1072-1/16; and providing an effective date.

J) Equipment (C10288) - Resolution 10-131

A Resolution of the City of Sunrise, Florida, approving the purchase of recording equipment from Gans & Pugh of Herndon, VA; and providing an effective date.

K) Services (C10287) - Resolution 10-132

A Resolution of the City of Sunrise, Florida, to award bid no. 10(28)12-07-09-13-H and a contract for Road Restoration Services to Florida Blacktop, Inc. of Pompano Beach, Florida; and providing an effective date.

L) Agreement (C10266) - Resolution 10-133

A Resolution of the City of Sunrise, Florida, to award bid no. 10(29)10-04-09-08-R for the Senior Center floor replacement to Parlette Flooring Concepts, Inc. of Greenacres, Florida; and providing an effective date.

M) Agreement (C10260) - Resolution 07-51-10-B

A Resolution of the City of Sunrise, Florida, approving modification no. 2 to Sub-Grant Agreement No. 09HM-5G-11-16-02-001 between the City of Sunrise and the State of Florida Division of Emergency Management for hazard mitigation grant funding; and providing an

effective date. .

N) Equipment (C10285) - Resolution 10-134

A Resolution of the City of Sunrise, Florida, approving the purchase of Water Meter Boxes from A&B Pipe and Supply, Inc. and HD Supply Waterworks, Ltd. under the terms of the Southeast Florida Governmental purchasing cooperative; and providing an effective date.

10. Quasi-Judicial Consent Agenda

A) Americana Oak Shopping Plaza³ - Rezoning (P&Z 8/5/10 Failed 3-3).

MOTION A motion to table Item 10A to Monday October 4, 2010 at 6:30 p.m. made by Commissioner Rosen was seconded by Deputy Mayor Alu.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

11. Public Hearings

MOTION A motion to move the Quasi-Judicial Public Hearing Item 12A up on the agenda made by Deputy Mayor Alu.

Item 12A was moved up on the agenda without objection.⁴

A) Adjustment - (C10215) - Ordinance 393-10-A

re: Second Reading

An Ordinance of the City of Sunrise, Florida, revising user charges for Emergency Medical Services; providing for severability; and providing an effective date. (First Reading, SCCM 9/13/10, Passed 5-0).

MOTION A motion to approve Item 11A made by Deputy Mayor Alu was seconded by Assistant Deputy Mayor Scuotto.

³ This item was voted upon during Item 16D, which begins on Page 20.

⁴ This item begins on Page 14.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

B) Amendment - (C09298) - Ordinance 486-10-A

re: Second Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter 2, article I of the City Code; entitled "Administration" by amending Section 2-1, entitled "Lobbyists"; amending annual expenditures report requirements; providing for conflict; providing for severability; providing for inclusion in the city code; and providing an effective date. (First Reading, SCCM 9/13/10, Passed 5-0).

MOTION A motion to approve Item 11B made by Assistant Deputy Mayor Scuotto was seconded by Commissioner Rosen.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

C) Amendment - (C10203) - Ordinance 242-10-B

re: Second Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter 15 "Utilities*;" Section 15-131 "rendering of bills; partial payments;" to modify the interest provision; providing for

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conflict; providing for severability; providing for inclusion in the city code; and providing an effective date. (First Reading, SCCM 9/13/10, Passed 5-0).

MOTION A motion to approve Item 11C made by Commissioner Rosen was seconded by Commissioner Wishner.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

D) Amendment - (C10228) - Ordinance 20-10-A

re: Second Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter XIV "Traffic and Motor Vehicles" Article III "Dangerous Intersection Safety," providing for recorded image monitoring and enforcement of red light traffic control signals consistent with general law as provided by Chapter 2010-80, Laws of Florida (2010); providing for conflict; providing for severability; providing for reservation of rights; providing for inclusion in the city code; and providing an effective date. (First Reading, SCCM 9/13/10, Passed 4-1, Alu Nay).

MOTION A motion to approve Item 11D made by Deputy Mayor Alu was seconded by Commissioner Rosen.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Nay
Mayor Ryan	Yea

MOTION Motion to return to Item 16D again was seconded by Assistant Deputy Mayor Scuotto. All were in favor.⁵

E) Amendment - (C10248) - Ordinance 505-10-H

re: Second Reading

An Ordinance of the City of Sunrise, Florida, amending fiscal year 2009/2010 budget Ordinance No. 505, to amend the general fund (001), the police confiscation/forfeiture fund (fund 610) and the stormwater utility-capital fund (fund 444); providing for conflict; providing for severability; and providing an effective date. (First Reading, SCCM 9/13/10, Passed 5-0).

MOTION A motion to approve Item 11E made by Commissioner Wishner was seconded by Assistant Deputy Mayor Scuotto.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Dr. Moeller explained that the money for the Aging and Disability Center and Family Central were included.

Commissioner Rosen asked about the other modifications. Specifically, the professional services line items and computer equipment.

Dr. Moeller explained that the vendor offered the City a discount and the City would pay for it from the reserve. The cost would ultimately be covered by confiscated funds.

Commissioner Rosen asked for that information to be listed.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Absent
Mayor Ryan	Yea

F) Amendment - (C10277)

⁵ Item 16D begins on Page 20.

re: First Reading

An Ordinance of the City of Sunrise, Florida, amending the Community Development Department Fee Schedule; providing for conflict; providing for severability; and providing an effective date.

MOTION A motion to approve Item 11F made by Assistant Deputy Mayor Scuotto was seconded by Commissioner Scuotto.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Commissioner Wishner asked what this addressed.

Dr. Moeller explained that it changed some fees related to outdoor seating.

Mayor Ryan asked if the fee could be waived for the first year.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Absent
Mayor Ryan	Yea

G) Amendment - (C10276)

re: First Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter 16 "Land Development Code;" amending Article V "District Regulations;" Section 16-79 "Master Business List;" and Section 16-80 "I-1 Light Industrial District;" to allow additional uses; amending Article VII "Off-Street Parking and Loading;" Section 16-144 "Amount of Off-Street Parking;" amending Article XVII "Definitions;" Section 16-277 "Terms Defined;" providing for conflict; providing for severability; providing for inclusion in the city code; and providing for an effective date.

MOTION A motion to approve Item 11G made by Commissioner Rosen was seconded by Commissioner Wishner.

Mayor Ryan opened the public hearing. No one came forward to speak.

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Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Absent
Mayor Ryan	Yea

H) Outdoor Seating - (C10269)

re: First Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter 7 "Local Business Tax; Local Business Tax Receipts, and Business Regulations*," Article III "Amusements;" Division 3 "Circuses, Carnivals and Outdoor Shows;" by deleting section 7-109 "Open Air Café and Outside Restaurant Seating Regulations;" amending Chapter 16 "Land Development Code," Article V "District Regulations," Section 16-78 "Business Districts;" amending Section 16-79 "Master Business List;" removing Section 16-112 from Article V, by creating new Section 16-112 "Outdoor Restaurant Seating Areas;" under Article VI "Supplemental Regulations;" amending Chapter 16 "Land Development Code," Article VII "Off-Street Parking and Loading," Section 16-144 "Amount of Off-Street Parking;" amending Chapter 16 "Land Development Code," Article XVII "Definitions" Section 16-277 "Terms Defined;" providing for conflict; providing for severability; providing for inclusion in the city code; and providing for an effective date.

MOTION A motion to approve Item 11H made by Commissioner Rosen was seconded by Commissioner Wishner.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Absent
Mayor Ryan	Yea

I) Ballot - (C10280)

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re: First Reading

An Ordinance of the City of Sunrise, Florida, regarding the November 2, 2010, Municipal Election in the City of Sunrise, Broward County; prescribing the form of ballot to be used; providing for conflict; providing for severability; and providing an effective date.

MOTION A motion to approve Item 11I made by Commissioner Rosen was seconded by Deputy Mayor Alu.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

MOTION A motion by Commissioner Rosen to move up Item 16C was seconded by Deputy Mayor Alu. All were in favor.

12. Quasi-Judicial Hearings

A) License - (C10241) - Resolution 10-135⁶

A Resolution of the City of Sunrise, Florida, approving the application submitted by Showgirls Inc Cabaret located at 3801 N. University Drive Suite 101 to transfer an existing extended hours license originally issued to Goldfinger's North, Inc.; providing for conditions; providing for requirement of renewal; and providing an effective date.

Attorney for the applicant, Louis J. Terminello, came forward.

City Attorney Stuart Michelson asked the applicant if they wanted to waive their rights to a quasi-judicial hearing, because staff was recommending approval.

Mr. Terminello stated yes. He advised there was a stock purchase acquisition. There was a portion of new ownership. Because there was a change in the ownership, the

⁶ Heard before Item 11A.

City's code required this to come back to the Commission for approval. He advised that 18 years ago his client had a run-in with the law.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Deputy Mayor Alu announced that she was going to abstain from voting since John Ferguson was one of the owners. When he was CEO of All Service Refuse, she contacted the FBI regarding threats against her due to her voting in the past.

Mr. Terminello replied that Mr. Ferguson was always an owner.

Deputy Mayor Alu stated that she never voted on anything involving this business.

Mayor Ryan asked if this new information could be directed back to staff for consideration.

Mark Lubelski, Director of Community Development, advised that when an establishment is sold, that there was specific criteria for review. One criteria was the mounting law enforcement activities generated by the operation and criminal background checks of all owners and managers. The background checks were provided and attached.

Mayor Ryan asked if investigations, known or suspected, were not considered by staff.

Mr. Lubelski answered that those investigations were not considered.

Mayor Ryan asked if the Commission could consider the information provided by Deputy Mayor Alu in its deliberations on the extended hours license. He also asked if staff could reconsider their recommendation based on this information.

City Attorney Stuart Michelson stated the item could be tabled to look into the facts. The statement by Deputy Mayor Alu was not evidence.

Mayor Ryan explained that if this was a fact, it might be able to be considered.

City Attorney Stuart Michelson again stated the item could be tabled to look into the facts. The license was not transferable by right.

Mayor Ryan did not want staff to look into something that could not be considered.

City Attorney Stuart Michelson explained that the City had the right to investigate the circumstances surrounding the issue.

Deputy Mayor Alu asked if she abstained if she could ask questions. She did not expect the City Commission to hold Showgirl Cabaret responsible for Mr. Ferguson's behavior. She personally could not be unbiased in her consideration. She clarified that she could not vote to approve anything involving someone who had threatened her in the past.

Commissioner Rosen advised that he was involved with Springtree charity. Mr. Ferguson brought out containers from another vendor, even though he knew that All Service held the contract. He believed that the City may run into a problem with him contracting with another hauler.

Mayor Ryan said he was unsure if that was something that could be considered in a quasi-judicial setting. Given the uncertainty, he agreed that it should be tabled at this time and/or a legal opinion as to what could be considered.

City Attorney Stuart Michelson asked if the Commission wanted to determine to have a criminal record. He commented that the Commission had the right to fully vet the background of an applicant.

Mr. Terminello explained that it was an asset purchase. Mr. Ferguson was part of the old entity. He was involved with the organization previously and still is. Being investigated by a law enforcement agency did not preclude or impair him from hold any kind of permit. Mr. Ferguson holds the alcohol license. He was a 10% shareholder and the permit holder of the City. He was a passive investor. He suggested that the City pass the measure.

Mayor Ryan stated that the City maintained the right to thoroughly review the matter prior to passage.

Deputy Mayor Alu stated that Mr. Ferguson was investigated by the FBI due to harassment and threats made against her and her family. She should abstain because she did not trust him. Mr. Ferguson was not a convicted felon.

Mayor Ryan asked if the City could table the matter to ensure that Mr. Ferguson did not have a criminal record.

Assistant Deputy Mayor Scuotto stated that Mr. Ferguson was not a felon. He was an investor in a business and his partner embezzled money. He was left in a situation involving this business and was trying to move forward. An investigation did not preclude him from moving forward.

City Attorney Stuart Michelson said the scope of what could be considered was simply two elements: first, if there was a problem at the business, such as if there was a crime at the business; or second, if one of the owners or managers was a convicted felon. Mayor Ryan stated that the allegation, if true, was a felony. He wanted a better legal analysis.

MOTION A motion to table to October 12th at 8:00 p.m. made by Commissioner Wishner was seconded by Commissioner Rosen.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Abstain ⁷
Mayor Ryan	Yea

The Commission move to Item 11A.

13. City Clerk's Report

None

14. City Attorney's Report

None

15. Old Business

None

16. New Business

A) Amendment - (C10278)

re: First Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter 2, "Administration*;" Article III "Boards, Committees, Commissions, Councils;" by amending Section 2-157; by creating Division 15 "Small Business Advisory Board;" providing for conflict; providing for severability; providing for inclusion in the Code; and providing for an effective date.

⁷ Deputy Mayor Alu's Form 8B filed on next page.

MOTION A motion to approve Item 16A made by Commissioner Wishner was seconded by Assistant Deputy Mayor Scuotto.

Mayor Ryan said the Chamber was in favor of the ordinance. The Chamber asked for an ex-officio member to come from the Chamber.

Commissioner Rosen asked what the difference was between the Economic Development Advisory Board and this proposed board.

Economic Development Director Lou Sandora stated that economic development was important. Sunrise was quite accomplished in acquiring companies. Florida was slow to recover from the recession. In the Sawgrass Corporate Park, small businesses were hit harder than the larger businesses and were more susceptible to swings in the economy. This board would focus on examining the economic impact of decisions made by the Commission.

Commissioner Rosen stated that he wanted the board to be effective. He was not interested in creating another board for the sake of creating a board.

Mayor Ryan explained that creating the board would send a message that the City is interested in helping business, not being an obstacle.

Commissioner Wishner agreed that it was important to look at what needed to be modified to help businesses thrive in Sunrise. He suggested using more local vendors and reaching out to them for goods and services. He believed that the focus on small business and how local legislation affected those businesses was important.

Deputy Mayor Alu wondered if there would be enough participation.

Mayor Ryan believed that there would be a broad array of applicants.

The Commission listed out the specific categories of applicants.

Assistant Deputy Mayor Scuotto said if the board was to focus on small businesses, it needed to have small business owners. It should be more of a liaison, rather than being like the Chamber.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea

Mayor Ryan

Yea

B) Amendment - (C10235)

re: First Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter 2 "Administration*;" Article II "City Commission;" Division 1 "Generally" by creating Section 2-17 "Background Checks for Mayor and City Commissioners;" providing for conflict; providing for severability; providing for inclusion in the City Code; and providing an effective date. (First Reading tabled on CCM 8/10/10, Passed 4-0, Sofield Absent). (First Reading tabled on SCCM 9/13/10, Passed 5-0).

MOTION A motion to remove Item 16B from the table made by Commissioner Rosen was seconded by Deputy Mayor Alu.

MOTION A motion to approve Item 16B made by Commissioner Wishner was seconded by Deputy Mayor Alu.

Commissioner Wishner stated this came up during the campaign. The fact is that any of their actions would come to light and most matters were of public record. If anything did occur, it would be uncovered.

MOTION A motion to strike Item 16B made by Commissioner Wishner was seconded by Deputy Mayor Alu.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

C) Insurance - (C10281) - Resolution 03-153-10-A

A Resolution of the City of Sunrise, Florida, approving the open access HMO Premier and National Point of Service Employee Group Medical Plans through Humana Insurance Company of Florida, for the contract period of January 1, 2011 through December 31, 2011, providing for funding, and providing for an effective date.

MOTION A motion to approve Item 16C made by Commissioner Rosen was seconded by Commissioner Wishner.

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Commissioner Rosen congratulated staff on their efforts.

Risk Manager Bill Mason explained that the employees agreed with the measure.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

Mayor Ryan recessed the meeting at 10:47 p.m.

Mayor Ryan reconvened the meeting at 10:59 p.m.

The Commission moved to Item 16A.

D) Agreement - (C10244) - Resolution 10-135

A Resolution of the City of Sunrise, Florida, approving the award of RFP No. (09)A-09 and authorizing the Purchasing Director to negotiate and enter into a contract for a Red Light Traffic Enforcement System with American Traffic Solutions (ATS) of Scottsdale, Arizona; and providing an effective date.

MOTION A motion to approve Item 16D made by Deputy Mayor Alu was seconded by Assistant Deputy Mayor Scuotto.

Dr. Moeller explained that the City had a red light camera ordinance. There were three responses to the City's RFP, but one company no longer serves Florida. The City decided to wait to see what the Florida Legislature was going to do regarding the regulation of red light cameras. Now that the state finished deliberating on the issue, Staff recommended hearing from the remaining vendors. The ordinance had to be amended to comport with state law. Staff identified a preferred firm, but the Commission stated it wanted to hear from the vendors and ask questions.

Purchasing Director Dick Cummings informed the Commission about the procedure before the body. The firms would present in alphabetical order and the Commission could ask questions.

Mayor Ryan asked if the Commission had to pass the ordinance first, then award the contract.

City Attorney Stuart Michelson stated that was not necessary.

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Mayor Ryan asked if the Commission could award a contract for something that might not pass.

City Attorney Stuart Michelson stated they could listen to the presentations.

Mayor Ryan suggested listening to the presentations, but not awarding the contract until the ordinance passed. Item 16D would be tabled until the ordinance passed.

City Attorney Stuart Michelson agreed.

Deputy Mayor Alu suggested passing Item 11D first.

MOTION A motion to vote on Item 11D made by Deputy Mayor Alu.

The Commission returned to and voted on Item 11D.⁸

Deputy Mayor Alu read the resolution title again.

MOTION A motion by Deputy Mayor Alu was seconded by Commissioner Wishner to hear presentations. All were in favor.

Commissioner Wishner asked if the back-up information comported with the current law. He was told it did. Due to the change in the law, Commissioner Wishner asked the presenters to address any changes in the point valuation areas since the original submission.

Assistant Deputy Mayor Scuotto stated a cone of silence was in place and asked if anyone had been contacted by the firms.

Deputy Mayor Alu advised that a year ago she received a letter from George Platt. She stated that she responded with another letter stating that the company should use lobbyists or hire Mr. Platt. Additionally, she advised that she was opposed to red light cameras.

Joanne Diorio, ACS Vice President of Sales in Florida, presented first and responded to questions.

TABLE ITEM 10A⁹

⁸ Item 11D begins on Page 10.

⁹ Item 10A begins on Page 8.

MOTION A motion to table Item 10A made by Commissioner Rosen was seconded by Deputy Mayor Alu.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Yea
Mayor Ryan	Yea

RETURN TO ITEM 16D

American Traffic Solutions (ATS) presented second and responded to questions.

Deputy Mayor Alu left the dais.

MOTION Motion to approve Item 16D made by Commissioner Rosen was seconded by Commissioner Scuotto.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Absent
Mayor Ryan	Yea

Commissioner Wishner asked if staff was going to negotiate the contract and come back to the Commission for approval.

Mr. Cummings stated that he would negotiate the contract and sign it. There were only slight matters that required negotiation, but he offered for the Commission to approve the contract.

Commissioner Wishner replied that because the circumstances had changed, in an abundance of caution, he preferred the matter to come back before the Commission.

Mayor Ryan advised that he thought the negotiation should move quickly to reach terms. He added it was his understanding that if an agreement could not be reached, the RFP would go out again.

Commissioner Wishner commented that he wanted to see the agreement to be sure that the revenue neutral language was in the contract and also to ensure there were out-clauses and penalties.

MOTION A motion made by Assistant Deputy Mayor Scuotto to amend the resolution so that the agreement came back before the Commission was seconded by Commissioner Rosen. All were in favor.

Mayor Ryan asked for a roll call on the resolution as amended one time.

Roll Call:

Commissioner Wishner	Yea
Commissioner Rosen	Yea
Assistant Deputy Mayor Scuotto	Yea
Deputy Mayor Alu	Absent
Mayor Ryan	Yea

Mayor Ryan recessed the meeting at 9:54 p.m.

Mayor Ryan reconvened the meeting at 10:03 p.m.

The Commission returned to the City Manager's Report.

E) City Attorney Office Discussion

Commission discussion and/or action re: City Attorney's Office.

MOTION A motion to discuss the City Attorney's Office made by Commissioner Rosen was seconded by Commissioner Wishner. All were in favor.

Deputy Mayor Alu explained that she had no problem putting the city attorney contract out to bid. She believed that the City Attorney did a wonderful job, but she stated the City was unable to shake the criticism of his hire, due to the city attorney's wife being a county commissioner. Some believe that all high paying jobs should go out to bid. She recapped the Charter officer's hiring process. She recommended keeping the City Attorney's contract as outside counsel. She recommended that the firm hired not handle other work for the City that was beyond the scope of the contract. She did not want another in-house attorney.

Assistant Deputy Mayor Scuotto explained when he was running the question arose. He thanked Deputy Mayor Alu for her information. He knew that he previously had a problem with the way Mr. Michelson was hired, but he no longer had a problem with Mr. Michelson's representation. He was comfortable with his representation and that of his assistant, Kimberly Kisslan. He supported the Request for Letters of Interest (RLI)

for transparency. He believed that Mr. Michelson had the best qualifications for the position. He asked for clarification as to what the Commission was seeking.

Commissioner Rosen agreed that the costs went down. He supported the RLI to in light of the public's position. He thought Mr. Michelson provided excellent representation. He recommended that the City look at the total number to run the office in order to obtain the actual cost of running the office. He hoped this would bring efficiency to the attorney's services.

Commissioner Wishner believed that the Commission wanted to move forward with the RLI. The Commission needed to review Mr. Michelson's contract to see what items should be included or handled by other firms. For him it was a balance between the best qualified person and possibly lowering the costs. Additionally, the City of Sunrise was a complicated City with many unique circumstances.

Mayor Ryan asked who would draft the RLI.

Dr. Moeller answered that staff would draft the RLI based on what other communities have done previously. The draft would be shared with members of the commission individually and their suggestions incorporated. Then the final draft would come before the Commission as a body for the final determination.

Deputy Mayor Alu said she received many calls about putting out all of the high-paying positions to RLI. She was not adverse to that, but did not want the City to fall into chaos. She received phone calls about the City Manager and the Police Chief as well.

Dr. Moeller asked for a motion to go and draft an RLI.

MOTION A motion to have the City Manager draft a Request for Letters of Interest by Deputy Mayor Alu was seconded by Assistant Deputy Mayor Scuotto. All were in favor.

Mayor Ryan said that this began as a perception issue for him, but had some lingering questions related to the bond fees. He learned the Mr. Michelson received a large fee for the bond deal. He spoke with staff and still has not received adequate justifications. He heard that the fee was to justify insurance. He looked through his contract and did not find that the City covered his insurance premiums. He later learned that the City obtained insurance for him. Mr. Michelson advised that it was for "tail coverage". Mayor Ryan reviewed the policy and it was triggered by the occurrence and did not need tail coverage. Therefore, there was no reason for the fee. He could not find justification for the fee. He objected to the payment. He did not see any modification to his contract. The decision to convince the Commission that it had to do with insurance was disturbing. Additionally, he was concerned about the way the pool claim file was handled.

Deputy Mayor Alu asked if the Commission could discuss this at the next meeting.

Mayor Ryan stated that he was poised to terminate the contract pursuant to his memo.

Deputy Mayor Alu was not happy with Mr. Michelson's fee bond counsel fee. She was shocked to learn the rate of pay for bond work. She discussed the differences between his contract and Mr. Samuel Goren's contract work. Everyone knew prior to the vote about the fee. With regard to the pool, a lawsuit could not be undertaken without certain facts in hand. She understood the mayor's frustration, but asked for him to give the relationship time. She has disagreed with Mr. Michelson's decisions at times. She did not believe Mr. Michelson or Ms. Kisslan had an opportunity to prove themselves. She had disagreements with Mr. Michelson and he has made mistakes. The matter was going to bid now, but she did not feel it was appropriate to terminate Mr. Michelson at this time.

Mayor Ryan further explained that there were issues related to the Charter Review Board and voting matters. He explained that the bond opinion letter was a City Attorney function. He advised that this could not be voted on this evening.

Deputy Mayor Alu asked for Mr. Michelson to present. She would not vote ten days from this evening in favor of a motion to terminate Mr. Michelson. It was going out to bid.

Mayor Ryan replied that he wrote the memo so that it was clear this was not a reflexive action. The issues were substantive.

Commissioner Rosen said his concern was that the City would not have a City Attorney. He did not want to be forced to find someone on an hourly basis. He asked for Deputy Mayor Alu and Mayor Ryan to have more input into the RLI process as attorneys.

City Attorney Stuart Michelson never told anyone that it was just for insurance. He had to sign an opinion letter on a \$120 million bond deal that would be outstanding for 30 years. The Florida League was providing \$5 million coverage. He needed to know that he had his own insurance. He had his own policy to cover an extra \$2 million. He wanted a tail policy if the City left the Florida League of Cities. He demonstrated that other attorneys were paid for assuming the risk of signing the opinion letter. It was part of the bond deal. He demonstrated that other attorneys received more money for smaller bond deals. He asked the Commission to remember he was assuming the risk and that was why there was compensation. With regard to the pool, the demand letter was sent in November 2009. Then it came out that the Commission did not want PBS&J to be the engineers. Then an RFP had to be conducted and awarded.

Mayor Ryan responded that the FLC issued an occurrence policy which was forever, thereby obviating the need for tail coverage. If the league failed, the bond coverage would be the least of the City's problems.

Deputy Mayor Alu asked the mayor and city attorney to work out their differences. It was already decided that the attorney services would go out to RLI. Additionally, the decision to pay Mr. Michelson was already decided as well.

17. Adjournment

Seeing no further business, the meeting adjourned at 12:06 a.m.

Respectfully submitted by:

Felicia M. Bravo, City Clerk